MOLLYN MUTSEYEKWA
versus
HADJI MRISHO MIGILLA

HIGH COURT OF ZIMBABWE
MHURI J
HARARE, 11 July 2025 and 17 November 2025

Opposed Application

T J Muhonde, for the applicant
Z Bofu, for the respondent

MHURI J: This is an application for rescission of a default judgment in terms of r 59(1) and r 27 of the High Court Rules, SI 202 of 2021. The default judgment was granted on 27 March 2025. The background facts to the application are that the respondent issued summons against the applicant on 28 October 2021 claiming a decree of divorce and ancillary relief under case number HCH5929/21. The applicant entered an appearance to defend on 7 December 2021 and subsequently filed her plea and counterclaim on 19 January 2022.

The matter was set down for a Pre-Trial Conference (PTC) hearing on 28 February 2025 wherein the court directed that a further round table conference be held and the legal practitioners were to file either a deed of settlement or joint PTC Minute before 4 March 2025. The matter was then enrolled for a further PTC on 4 March 2025 by consent. On that day, legal practitioners of both parties attended the PTC hearing but the applicant was absent. Resultantly, on that day, the court struck out the applicant's (defendant's) defence and counter claim and referred the matter to the unopposed roll.

On 27 March 2025, the matter was heard on the unopposed roll and the order was granted dissolving the marriage and making provision for the distribution of the immovable property hence the present application in which the applicant seeks an order in the following terms:

> "1The application for the rescission of the default judgment be and is hereby granted.
>
> 2. The default judgment granted against the Applicant on 27 March 2025 under case number HC 5929/21 pursuant to the Pre-Trial Conference proceedings of 04 March 2025 be and is hereby rescinded and set aside.
>
> 3. The Applicant's defence, counterclaim and all pleadings in case number HC 5929/21, the main matter, be and are hereby reinstated.

4. The case number HC 5929/21, main matter, be and is hereby reinstated on the PreTrial Conference Roll.

5. The costs of the application shall be costs in the cause."

On the date of hearing, 11 July 2025, the parties submitted that they will abide by the papers filed of record, will not make any oral submissions, and that the court should proceed to determine the matter on the papers filed of record.

In his opposing papers, the respondent raised two preliminary points to the effect firstly that, the consequences of applicant's defence having been struck out means the court cannot peek into the merits of the matter and secondly that, the applicant's founding affidavit is fatally defective in that it does not comply with the requirements of the rules governing attestation of affidavits.

It was the respondent's submission on the first preliminary point that this application is being made on the back of a court order which ordered the jettisoning of the applicant's defence in the main claim for want of compliance with the Rules. Thus, once the applicant's defence to the summons matter was struck out it meant that there was no defence before the court. The position is as if the matter was not defended and that is why in the circumstances the respondent was allowed to proceed to obtain the judgment uncontested. The present status is that there is no room for the participation of the applicant to contest the relief sought by the respondent. Since the court is presently disabled from weighing the merits by reason of the defence being struck out by an order which is extant, it remains impossible for the court to consider the merits, so submitted respondent.

On the second *point in limine,* it was Respondent's argument that applicant's founding affidavit falls under affidavits governed by r 85 (5). The rule requires that an affidavit be sworn before a Commissioner of Oaths who is appointed as such by the High Court to take affidavits or examine witnesses in any place outside Zimbabwe. The Commissioner before whom the oath was taken has not shown his appointment to administer oaths outside Zimbabwe as is required. Further, that Applicant did not appear to take the oath by way of personal appearance.

In response to the first preliminary point raised by the respondent, the applicant submitted that there is no room for contestation of the relief being sought by the applicant. This point was not worth considering as the Court is at liberty to weigh the merits of this application and those of the defence raised in her plea.

On the second *point in limine,* she submitted that this point is equally without merit and should be dismissed at the instance of r 85 (2) and (6). She submitted that she duly appeared before a Notary Public in terms of the laws of the United Kingdom.

In considering applications such as this, the Court has to consider in the main, the explanation for the default and the bona fides of the defence. I therefore do not agree with the submission by the respondent that since the applicant's defence was struck out she is disabled from addressing the merits of the case.

As regards the respondent's *second point in limine,* respondent relied on r 85 (5) to impugn applicant's founding affidavit. That rule in my view does not take Respondents argument anywhere. It provides as follows:

> " *An affidavit sworn before and attested by commissioner outside Zimbabwe shall require no further authentification, and may be used in all cases and matters in which affidavits are admissible as freely as if it had been duly made and sworn to within Zimbabwe*."

Applicant's affidavit was notarised by a Notary public. The notary seal of office is thereon endorsed. Rule 85 (2) provides:

> "Any document executed in any place outside Zimbabwe shall be deemed to be sufficiently authenticated for purposes of production or use in any court or tribunal in Zimbabwe……..if it is duly authenticated at such foreign place by the signature and seal of office.
>
> (a) of a notary public, mayor or person holding judicial office
> (b) – (e) ……."

(emphasis added)

Subrule (7) authorises authentication of documents by electronic means.

Further Subrule (6) authorises this court to accept as sufficiently authenticated any document which is shown to the satisfaction of the court to have been actually signed by the person purporting to have signed the same.

It was not respondent's argument that applicant did not sign the affidavit. It is my finding that *this point in limine* was also not well taken and I dismiss it.

It is undisputed that applicant's defence was struck out and the matter referred to the unopposed roll by an order of 4 March 2025.Applicant then sought rescission of this order under case number HCHF 1132/25. In her founding affidavit applicant addressed at length the reason/s for her default on 4 March 2025 stating that her non-appearance was due to a vehicle breakdown when she was on her way to court.

Applicant however did not prosecute this application HCHF 1132/25 to finality. She withdrew it midway on 8 April 2025 after an order of the 27th of March 2025 had been granted. In para 17 of her founding affidavit she stated:

> "It is therefore my respectful understanding that the present application effectively overtakes my earlier application under HCHF1132/25 given that the extant court order issued by the court was only issued on 27 March 2025 subsequent to my earlier application dated 24 March 2025."

In that regard, the court therefore proceeds to determine the application under HCHF1357/25. Rule 27 of the High Court Rules, upon which applicant has approached this court provides as follows

> "(1)A party against whom judgement has been given in default whether under these rules or under any other law, may make a court application…….
>
> (2) If the court is satisfied on an application in terms of subrule(1) that there is good and sufficient cause to do so, the court may set aside the judgement concerned and give leave to the defendant or to the plaintiff to prosecute the action on such terms as to costs and otherwise as the court considers just."

On "good and sufficient cause", MCNALLY JA(as he then was) held that the High Court Rules requires only "good and sufficient cause" as the basis of rescission of the judgement. This gives the court a wide discretion and it is not possible to provide an exhaustive definition of what constitutes sufficient cause to justify the grant of indulgence. Even where there has been wilful default there may still sometimes be good and sufficient cause for the granting of rescission. The good and sufficient cause, for instance, might arise from the motive behind the default. *Deweras Farm (Pvt) Ltd & Ors* v *Zimbabwe Banking Corp Ltd* 1998(1) ZLR 368(S)

The test is therefore whether applicant has established good and sufficient cause in this matter for rescission to be granted.

In *casu*, applicant is to explain the default vis a vis the default order of 27 March 2025.In her founding affidavit under para(s) 20,21,22,23,24 and 25 applicant goes to town explaining the default in respect of the default of 4 March 2025.

Her explanation for the default of 27 March 2025 is that she was never served with the Notice of Set down. She does not expound further on this point. As indicated above, she only dwelt on the explanation of her default on the 4th of March 2025. Like I mentioned earlier, The application before me is for the default of the 27th of March 2025 as per her application.

As regards the bona fides of her defence, applicant again goes to town addressing only the merits of the main matter HCHF5929/21. What is to be borne in mind is that, there is an order of 4 March 2025 which in the event that the order of 27 March 2025 is rescinded that order remains extant. That is the consequence of her application under HCHF1357/25

In her draft order, applicant in para 3 seeks that her defence and counterclaim and all pleadings in case number HCHF5929/21 be reinstated. The relief in my view can only be granted if I were dealing with an application to rescind the default order of 4 March 2025 which application as I alluded to earlier was withdrawn by applicant.

All having been considered, I find that applicant has failed to establish that there is good and sufficient cause for me to grant her the indulgence she is seeking. She equally has failed to meet the requirements for applications such as the one *in casu*.

Consequently, the application for rescission of the order granted on 27 March 2025 be and is hereby dismissed with costs.

MHURI J:……

Muhonde Attorneys, applicant's legal practitioners
Tabana & Marwa Legal Practitioners, respondent's legal practitioners